



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

May 8, 2024

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202208046 (Incident Date: November 10, 2022) regarding Police Officer Vincent Martinez, Tax No. 963635 (DADS No. 2023-29617), Police Officer Ryan Young, Tax No. 963340 (DADS No. 2023-29618), Police Officer Perla Javier, Tax No. 969132 (DADS No. 2023-29619)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in connection with CCRB Case No. 202208046, pertaining to Police Officers Vincent Martinez, Ryan Young, and Perla Javier. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that no disciplinary action is warranted in connection with the substantiated allegations against said members of the service.

In this case, the officers were responding to a call of a burglary in progress when they encountered the complainants. The caller informed the officers that unknown individuals attempted to enter into his apartment, through the fire escape window, and that those individuals were currently in the apartment next door. The officers, having previously dealt with the residents of the apartment next door, were under the impression that the apartment was no longer occupied because the residents were evicted (this was later discovered to be incorrect as a court had stayed the eviction). Officer Young knocked on the door, and the first complainant answered and initially refused to open the door. The complainant subsequently opened the door, spoke with the officers, and appeared to close the door and turn away from the officers. The officers, recognizing the complainant as a former resident

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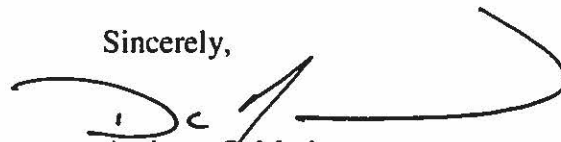
Website: <http://nyc.gov/nypd>

and determining that he did not have the right to be in the apartment, stopped the complainant from closing the door, entered the apartment, and immediately placed the complainant under arrest. Officers Young and Javier went further into the apartment and arrested the second complainant.

Having reviewed the relevant testimonial and video evidence, the Police Commissioner has determined that no disciplinary action is warranted for Officers Martinez, Young, and Javier in this matter. The officers had lawfully entered the apartment due to exigent circumstances. Although it was later determined that the complainants did have a right to be in the apartment, the officers had a reasonable basis to believe otherwise at the time of the incident.

Therefore, the Police Commissioner directs that Police Officers Martinez, Young, and Javier receive no disciplinary action for the improper entry allegations. Finally, it appears that Officer Javier was not interviewed by the CCRB regarding this incident. The Police Commissioner believes conducting subject officer interviews is an investigative best practice, especially since officers are compelled to answer questions. The CCRB should endeavor to interview subject officers in all cases, even more so when allegations are substantiated against those officers.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office